

OREGON STATE HOSPITAL

POLICY

SECTION 4: Fiscal **POLICY: 4.020**

SUBJECT: Contracts and Agreements at OSH

POINT PERSON: Chief Financial Officer/Chief Operations Officer

APPROVED: Dolores Matteucci **DATE: MARCH 9, 2023**
Superintendent

SELECT ONE: ☒ New policy ☐ Minor/technical revision of existing policy
☐ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. This policy establishes Oregon State Hospital's (OSH) requirements for contracts, agreements, and Contract Administrators at OSH.
- B. This policy applies to all staff.

II. POLICY

- A. OSH partners with the Office of Contracts and Procurement (OC&P) to establish contracts at OSH.
 - 1. All contracts must have appropriate prior approval before they are executed to ensure state funds are used appropriately.
 - 2. If a need for a contract or contract amendment is identified, staff must follow Procedures A.
 - 3. OSH Contracts maintains a record of all OSH contracts.
 - 4. Staff must follow the buy decision process as described in the Oregon Accounting Manual and Oregon Administrative Rule (OAR) §125-247-0200(2)(a)-(d), except for Oregon Revised Statute (ORS) 190 Agreements per OAR 125-246-0365.
 - 5. Contracts are selected following Oregon ethics laws, including but not limited to OAR 125-246-0605.

B. Contractors are subject to OSH policies, procedures, and protocols.

C. Contractors are evaluated per OSH policy 5.027, "Performance Management Plan."

D. Intergovernmental Agreements

1. OSH may establish ORS 190 Agreements in accordance with ORS 190.480. ORS 190 Agreements are not subject to the buy decision process, and OSH may elect to use ORS 190 Agreements at any time through negotiation, direct award, direct appointment, or in any other manner that satisfies the legal requirements for such Agreement.
2. Staff must submit all intergovernmental agreement requests to OSH Contracts for review and approval.
3. OSH Contracts reports ORS 190 Agreements per OAR 125-246-0365 reporting requirements.

E. Contract Administrator responsibilities

1. Per OAR 125-246-0555, OSH appoints a Contract Administrator to represent each OSH contract.
2. OSH Contracts maintains a list of OSH Contract Administrators for each contract and reports to OC&P.
3. Staff that conduct a procurement or administer a public contract for OSH must complete appropriate training and meet requirements of ORS 279A.159.
4. OSH Contract Administrators must monitor, track, and report on contract performance. Contract administrators perform tasks to ensure that contract requirements are fulfilled, terms and conditions are met, and administrative processes are performed in a timely manner.
5. OSH Contract Administrators must maintain all required contract documentation in the contract file, including but not limited to:
 - a. Successful proposal;
 - b. Feasibility studies;
 - c. Completed MSC 118 contract request forms;
 - d. Executed contract, amendments, and subcontracts;
 - e. Roles and Responsibilities Matrix;
 - f. Insurance certificates;

- g. Contract Verification Forms (CVF);
 - h. Contract Administration Plan (CAP);
 - i. Invoices and expenditures against contract;
 - j. Required reports from contractor;
 - k. Record of all program monitoring of contract performance (meeting minutes, etc.);
 - l. Record of all correspondence with contractor;
 - m. Record of all correspondence with OC&P, OSH program or department, and contractor regarding performance under contract;
 - n. Record of all correspondence relating to disputes over contractor performance; and
 - o. Cure Letters, termination, and suspension notices issued by OC&P.
6. OSH Contracts regularly audits contract administration files for compliance with this policy's requirements and identifies and tracks compliance trends. Compliance audit data is sent to the Chief Financial Officer for evaluation. The Chief Financial Officer may assign follow-up action if a Contract Administrator is found out of compliance.
7. OSH Contracts partners with the Chief Financial Officer to oversee and maintain all contract procurement processes at OSH.
- F. Oregon State Hospital (OSH) follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- G. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Contract administration" is as defined in OAR 125-246-0110. Contract administration means all the functions related to a given contract, including amendments, between OSH and a contractor from the time the contract is signed by all parties until the work is completed and accepted or the contract is terminated, final payment has been made, and any disputes have been resolved.

- B. "Contract Administrator" is as defined in OAR 125-246-0110. Contract Administrator means the OSH staff designated by OSH to conduct the contract administration of a contract or class of Contracts.
- C. "ORS 190 Agreement" is an intergovernmental agreement between two or more public agencies that seek to foster efficiency and economy by promoting the use of existing resources. ORS 190 provides for the following types of agreements:
1. Interagency Agreements (IAA) among agencies of Oregon state government.
 2. Intergovernmental Agreements (IGA) among the Oregon public agencies of state, local or federal government.
 3. Interstate Agreements (ISA) among Oregon public agencies and public agencies of other states.
 4. International Agreements (INA) among agencies of Oregon state government and countries outside of the United States.
 5. Tribal Agreements among Oregon public agencies and American Indian tribes or an agency of an American Indian tribe.
- D. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. PROCEDURES

Procedures A Contracts and Agreements at OSH

V. ATTACHMENTS

Attachment A OSH Contract Approval Process Flowchart

VI. RELATED OSH POLICIES AND PROTOCOLS

4.018 OSH Purchase and Maintenance: Supplies, Assets, and Equipment

5.027 Performance Management Plan

Business Analyst Department protocol 1.001, Contracts at OSH

VII. REFERENCES

42 CFR §482.12

42 CFR §482.22 – 482.28

42 CFR §482.41

42 CFR §482.62

Department of Administrative Services Oregon Procurement Manual. (2023, February 28)
<https://www.oregon.gov/das/OPM/Pages/method.aspx>. Author.

Oregon Administrative Rule Chapter 125-246

Oregon Administrative Rule Chapter 125-247

Oregon Administrative Rule Chapter 125-249

Oregon Administrative Rule §137-045-0015

Oregon Administrative Rule §137-074-0260

Oregon Administrative Rule §137-047-0261

Oregon Administrative Rule §137-047-0430

Oregon Revised Statute §§190.480 – 190.490

Oregon Revised Statute §190A

Oregon Revised Statute §200

Oregon Revised Statute §244.040

Oregon Revised Statute §279A.015(5)

Oregon Revised Statute §279A.025

Oregon Revised Statute §§279A.159-161

Oregon Revised Statute §279B.060

Oregon Revised Statute §279B.100

Oregon Revised Statute §279B.140

Oregon Revised Statute §279C

Shared Services, Oregon Department of Human Services/Oregon Health Authority. *Contract Request Form* (MSC 0118) [form].

Shared Services, Oregon Department of Human Services/Oregon Health Authority. *Contract Amendment Request Form* (MSC 0118A) [form].

Shared Services, Office of Information Services. *Third Party Information System Access Request* (MSC 785) [form]

The Joint Commission Resources, Inc. (2023). *The joint commission comprehensive accreditation manual for hospitals*, HR.01.02.07. Oakbrook Terrace, IL: Author.

The Joint Commission Resources, Inc. (2023). *The joint commission comprehensive accreditation manual for hospitals*, LD.04.03.09. Oakbrook Terrace, IL: Author.